

ATTACHMENT B-2
RIDER TO THE LEASE
N69450-25-RP-00086

LEASE RIDER

The following provisions are added to Lease:

10. General:

a. The Lessor shall provide a valid Certificate of Occupancy for the intended use of the Government and shall meet, maintain, and operate the building in conformance with all applicable current (as of the date of this lease) codes and ordinances.

b. The Leased Premises shall meet the applicable egress requirements in National Fire Protection Association (NFPA) 101, *Life Safety Code* or an alternative approach or method for achieving a level of safety deemed equivalent and acceptable by the Government. Offered space shall NOT be located below-grade. Unrestricted access to *a minimum of two* remote exits shall be provided.

c. The Building and the leased space shall be accessible to workers with disabilities in accordance with the *Americans with Disabilities Act Accessibility Guidelines* (36 CFR Part 1191, App. A) and the Uniform Federal Accessibility Standards (Federal Register vol. 49, No. 153, August 7, 1984, reissued as FED. STD. 795, dated April 1, 1988, and amended by Federal Property Management Regulations CFR 41, Subpart 101-19.6, Appendix A, 54 FR 12628, March 28, 1989). Where standards conflict, the more stringent shall apply.

d. The leased space shall be free of all asbestos containing materials, except undamaged asbestos flooring in the space or undamaged boiler or pipe insulation outside the space, *in which case an asbestos management* program conforming to Environmental Protection Agency guidance shall be implemented. The space shall be free of other hazardous materials according to applicable Federal, State, and local environmental regulations.

e. Regular hours of operation of the leased space will be from 6:30 A.M. to 5 P.M. Monday through Friday each week. Weekend hours of operation are as required. The Government shall have access to the leased space twenty four (24) hours per day, seven (7) days per week, including Federal holidays.

f. Government to pay utilities and telephone separately from rent.

g. The Lessor agrees to promptly replace or recharge, at no additional cost to the Government, any fire extinguisher(s) supplied under terms of this lease and discharged by Government agents, employees or occupants while fighting a fire.

11. Physical Security Requirements:

a. Lessor shall preclude unauthorized access to the leased facility through commercial physical security equipment on doors, windows, and other conduits/openings through which access may be attained.

b. Lessor shall allow the U.S. Government to install auxiliary physical security equipment, as required to protect the Government's interest.

12. Services and Utilities (Minimum requirements Lessor shall provide as part of rent):

All interior and exterior maintenance including HVAC system if provided as part of lease; site and parking lot and common area maintenance, initial and replacement lamps, tubes & ballasts, and installation, taxes and insurance shall be paid by the Lessor.

Government to pay electricity, gas, oil, water & sewer (hot and cold), and phone separately from rent.

13. Removable Government Furnished Property:

It is understood and agreed that the Government retains title to all removable Government furnished property covered by this agreement, including any racking system to be installed, and may remove same if so desired. In the event such are not removed by the Government at the end of this lease term, or any extension thereof, title shall vest in the Lessor and all right of restoration waived.

14. Insurance:

The Lessor shall maintain fire and extended coverage insurance on the premises, in such reasonable amounts as Lessor may desire, and at Lessor's expense. Each policy of insurance maintained by the Lessor as required hereunder shall contain an endorsement reading substantially as follows: "The insurer waives any right of subrogation against the United States of America which might arise by reason of any payment made under this policy."